

Considering the complaint filed on December 27, 2022, with this Agency by B.B.B. (hereinafter the complainant) against the REGIONAL TRANSPORT CONSORTIUM (hereinafter the respondent) for not having duly attended to their right of access.

Following the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: The complainant exercised their right of access against the respondent with NIF Q7850003J, and their request, as stated by the complainant, did not receive the legally established response. The complainant states that on December 5, 2022, they requested information regarding the number of trips made by metro, bus, and commuter trains during November 2022 and provided documentation related to the complaint filed with this Agency and regarding the exercise of the right exercised, in particular, the resolution of the REGIONAL TRANSPORT CONSORTIUM dated December 19, 2022, by virtue of which the respondent denies the access request, arguing that the request is repetitive as the same claim was made in September and October 2022 without the existence of a legitimate reason being known to said agency. However, they inform the complainant that if there were a legitimate reason justifying the formulation of requests for the right of access to personal data in such a systematic and repeated manner, the interested party may present it through the electronic address crtm_protecciondatos@madrid.org, so that it can be appropriately assessed and, if deemed appropriate, access to the requested information will be facilitated.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has established a mechanism prior to the admission of complaints filed with the AEPD, consisting of transferring them to the Data Protection Delegates designated by the controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, on February 9, 2023, the complaint was forwarded to the respondent entity for analysis and to provide a response to the complainant and this Agency within one month.

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THIRD: During this period, two new writings were received from the complainant in which they provided the responses received from the respondent regarding new requests for information related to the number of trips made by metro, bus, and commuter trains during December 2022 and January 2023.

FOURTH: The result of the transfer procedure indicated in Fact SECOND did not allow for the satisfaction of the complainant's claims. Consequently, on March 27, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve this procedure, which is understood to have commenced with the said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present any arguments it deemed appropriate.

This entity summarized its arguments as follows:

The respondent considers that the request is excessive due to its repetitive nature, as it requests the trips made each month regarding the previous month, having received a similar request for the months of September, October, November, and December 2022, and January and February 2023. It considers that there is insufficient justification on the part of the complainant for the request, raising the possibility

of charging a fee to facilitate the requested information if the Agency considers it appropriate to provide such data.

FIFTH: The allegations presented by the respondent were examined and transferred to the complainant, so that within fifteen working days they could formulate any arguments they deemed appropriate. The complainant has not submitted any arguments.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD).

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and

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promote awareness among the controllers and processors regarding the obligations that fall upon them, as well as address the complaints submitted by an interested party and investigate the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission of the complaint that gives rise to this procedure, it was forwarded to the responsible entity for analysis, to respond to this Agency within one month, and to demonstrate that it has provided the complainant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with the present procedure the guarantees and rights of the complainant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure,

objection, the right to restriction of processing, and the right to data portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities referred to in the request." The right shall be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the personal data have been or will be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about

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Transfers of personal data to a third country or to an international organization.

The possibility of obtaining a copy of the personal data subject to processing shall not negatively affect the rights and freedoms of others.

In the case analyzed here, the claimant exercised their right of access, and the respondent denied the right.

The respondent's denial of the right is based on the consideration that such a request is excessive due to its repetitive nature. The claimant has requested the right of access to their monthly data related to

the use of the transport card of which they are the holder, each month from September 2022 to February 2023 according to the documentation in the file.

Thus, in the resolution rejecting requests for access to personal data issued by the respondent and submitted by the claimant, it states:

“...On January 4, 2023, the request for access by Mr. B.B.B. to information about the trips made during December 2022 with the Public Transport Card of Madrid with number ***NUMBER.1 was received at the Regional Transport Consortium. Likewise, on January 31, 2023, another request for access to the trips made daily during January 2023 with the card numbered ***NUMBER.1 was received by this Organization, and on March 7, 2023, another request from the same interested party was received, through which a list of trips made daily during February 2023 with the card numbered ***NUMBER.1 was requested...”

Therefore, continues the respondent, information regarding the trips made monthly from September 2022 to February 2023 has been requested, which leads them to consider that the claimant intends to request their transport card movements monthly.

The respondent considers that this claim is excessive due to its repetitive nature, since it aims to access the same type of information (validations of the transport card) for different periods.

According to the respondent, “although it is undeniable that they are different data, it can also be stated that the requests are repetitive, since it would suffice to make a single request to access all the data at once.”

Furthermore, the respondent adds that there is a cost for the entity that they must establish: “...a reasonable fee based on the administrative costs incurred to provide the information or communication or to carry out the requested action...” if the Agency considers it so.

Finally, the respondent concludes by referring to Article 13.3 of the LOPDPGDD to argue that they consider the exercise of the right of access requested by the claimant to be repetitive since it has been requested more than once during the six-month period, without having provided a legitimate reason for it despite the fact that the respondent has urged them several times to formulate such motivation.

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To clarify the present case, it is necessary to consider what is stated in the Guidelines on the Right of Access by the European Data Protection Board (EDPB) (https://edpb.europa.eu/system/files/2023-04/edpb_guidelines_202201_data_subject_rights_access_v2_en.pdf). It stipulates that, in application of Article 12.5 of the GDPR, manifestly unfounded or excessive access requests, including the concept of repetition, must be interpreted restrictively.

Moreover, it also refers to the concept of “excessive” in an attempt to clarify the scope of this adjective in these cases:

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6.3.2 What does excessive mean?

181. There is no definition of the term “excessive” in the GDPR. On the one hand, the wording “in particular because of their repetitive character” in Art. 12(5) GDPR allows for the conclusion that the main scenario for application of this limb with regard to Art. 15 GDPR is linked to the quantity of requests of a data subject for the right of access. On the other hand, the aforementioned phrasing shows that other reasons that might cause excessiveness are not excluded a priori.

182. Certainly, according to Art. 15(3) GDPR regarding the right to obtain a copy, a data subject may submit more than one request to a controller. In the event of requests that could potentially be regarded as excessive, the assessment of “excessiveness” depends on the analysis carried out by the controller and the specifics of the sector in which it operates.

183. In case of subsequent requests, it has to be assessed whether the threshold of reasonable intervals (see Recital 63) has been exceeded or not. Controllers must take into account the particular circumstances of each case carefully.

184. For example, in the case of social networks, a change in the data set will be expected at shorter

intervals than in the case of land registers or central company registers. In the case of business associates, the frequency of contacts with the customer should be considered. Accordingly, the “reasonable intervals” within which data subjects may again exercise their right of access are also different. The more often changes occur in the database of the controller, the more often data subjects may be permitted to request access to their personal data without it being excessive. On the other hand, a second request by the same data subject could be considered to be repetitive in certain circumstances.

185. When deciding whether a reasonable interval has elapsed, controllers should consider the following in the light of the reasonable expectations of the data subject:

☐ how often the data is altered – is information unlikely to have changed between requests? If a data pool is obviously not subject to processing other than storage and the data subject is aware of this, e.g. because of a previous request for the right of access, this might be an indication for an excessive request;

☐ the nature of the data – this could include whether it is particularly sensitive.

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☐ the purposes of the processing – these could include whether the processing is likely to cause detriment (harm) to the requester if disclosed.

☐ whether the subsequent requests concern the same type of information or processing activities or different ones.

186. When it is possible to provide the information easily by electronic means or by remote access to a secure system, which means that complying with such requests actually doesn’t strain the controller, it is unlikely that subsequent requests can be regarded as excessive.

187. If a request overlaps with a previous request, the overlapping request can generally be regarded as excessive, if and insofar as it covers exactly the same information or processing activities and the previous request is not yet complied with by the controller without reaching the state of “undue delay” (see Art. 12(3) GDPR). In practice, as a consequence both requests could be combined.

188. The fact that it would take the controller a vast amount of time and effort to provide the information or the copy to the data subject cannot on its own render a request excessive. A large number of processing activities typically implicates bigger efforts when complying with access requests. However, as stated above, under certain circumstances requests can be regarded as excessive due to other reasons than their repetitive character. In the view of the EDPB this encompasses particularly cases of abusively relying on Art. 15 GDPR, which means cases in which data subjects make an excessive use of the right of access with the only intent of causing damage or harm to the controller.

189. Against this background, a request should not be regarded as excessive on the ground that:

☐ no reasons are given by the data subject for the request or the controller regards the request as meaningless;

☐ improper or impolite language is used by the data subject;

☐ the data subject intends to use the data to file further claims against the controller.

190. On the other hand, a request may be found excessive, for example, if:

☐ an individual makes a request, but at the same time offers to withdraw it in return for some form of benefit from the controller or

☐ the request is malicious in intent and is being used to harass the controller or its employees with no other purposes than to cause disruption, for example based on the fact that:

- the individual has explicitly stated, in the request itself or in other communications, that it intends to cause disruption and nothing else; or

- the individual systematically sends different requests to a controller as part of a campaign, e.g. once a week, with the intention and the effect of causing disruption.

6.3.3 Consequences

191. In case of a manifestly unfounded or excessive request for the right of access controllers may, according to Art. 12(5) GDPR, either charge a reasonable fee (taking

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taking into account the administrative costs of providing information or communication or taking the action requested) or refuse to comply with the request.

192. The EDPB points out that controllers are – on the one hand – not generally obliged to charge a reasonable fee before refusing to act on a request. On the other hand, they aren't completely free to choose between the two alternatives either. In fact, controllers have to make an adequate decision depending on the specific circumstances of the case. Whereas it is hardly imaginable that charging a reasonable fee is a suitable measure in case of manifestly unfounded requests, for excessive requests – in line with the principle of transparency – it will often be more appropriate to charge a fee as compensation for the administrative costs the repetitive requests are causing.

193. Controllers must be able to demonstrate the manifestly unfounded or excessive character of a request (Art. 12(5) third sentence GDPR). Hence, it is recommended to ensure proper documentation of the underlying facts. In line with Art. 12(4) GDPR, if controllers refuse to act on an access request in whole or partly, they must inform the data subject without delay and at the latest within one month of receipt of the request of

- ☐ the reason why,
- ☐ the right to lodge a complaint with a supervisory authority,
- ☐ the possibility to seek a judicial remedy.

194. Before charging a reasonable fee based on Art. 12(5) GDPR, controllers should provide an indication of their plan to do so to the data subjects. The latter have to be enabled to decide whether they will withdraw the request to avoid being charged.

195. Unjustified rejections of requests of the right of access can be regarded as infringements of data subject rights pursuant to Art. 12 to 22 GDPR and can therefore be subject to the exercise of corrective powers by competent supervisory authorities, including administrative fines based on Art. 83(5)(b) GDPR. If data subjects consider there is an infringement of their data subject rights, they have the right to lodge a complaint based on Art. 77 GDPR.

“What is excessive?”

181. There is no definition of the term “excessive” in the GDPR. On the one hand, the expression “in particular due to its repetitive nature” in Article 12, paragraph 5, of the GDPR allows us to conclude that the main scenario for the application of this part with respect to Article 15 of the GDPR is linked to the number of requests from a data subject for the right of access. On the other hand, the aforementioned phrase shows that other reasons that may cause excess are not excluded a priori.

182. Certainly, in accordance with Article 15, paragraph 3, of the GDPR, relating to the right to obtain a copy, a data subject may submit more than one request to a controller. In the case of requests that could be considered excessive, the assessment of “excessiveness” depends on the analysis carried out by the controller and the specificities of the sector in which it operates.

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183. In the case of subsequent requests, it must be assessed whether the threshold of reasonable intervals has been exceeded (see Recital 63). Data controllers must carefully consider the particular circumstances of the unique case.

184. For example, in the case of social networks, a change in the dataset is expected at shorter intervals than in the case of records. In the case of business partners, the frequency of contacts between them will be important. Consequently, the “reasonable intervals” in which data subjects can

exercise their right of access again are also different. The more frequently changes occur in the data controller's database, the more often data subjects may be allowed to request access without it being excessive. On the other hand, even a second request from the same data subject could be repetitive under certain circumstances.

185. When deciding whether a reasonable interval has elapsed, data controllers must consider, in light of the reasonable expectations of the data subject:

- How frequently are the data altered? Is it unlikely that the information has changed between requests? If, obviously, a dataset is not subject to processing other than storage and the data subject is aware of this, for example, due to a prior request for the right of access, it could be an indication of an excessive request;
- The nature of the data — this could include whether they are particularly sensitive;
- The purposes of the processing: this could include whether it is likely that the processing will cause harm (damage) to the requester if disclosed;
- Whether subsequent requests refer to the same type of information or to processing activities or to other different ones.

186. When it is possible to easily provide the information electronically or through remote access to a secure system, meaning that compliance with such requests does not actually affect the data controller, it is unlikely that subsequent requests could be considered excessive.

187. If a request overlaps with a previous request, the overlapping request may generally be considered excessive, as long as it covers exactly the same information or processing activities and the data controller has not yet fulfilled the previous request without reaching the state of "undue delay" (see Article 12(3) of the GDPR). In practice, as a result, both requests could be combined.

188. The fact that the data controller requires a significant amount of time and effort to provide the information or copy to the data subject cannot, by itself, make a request excessive. A large number of processing activities often involve greater efforts when complying with access requests. However, as previously indicated, under certain circumstances, requests may be considered excessive for reasons other than their repetitive nature. In the opinion of the EDPB, this particularly encompasses cases of abusive application of Article 15 of the GDPR.

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means that the data subjects are making excessive use of the right of access with the sole intention of causing harm or detriment to the data controller.

189. In this context, a request should not be considered excessive simply because:

- the data subject does not justify the request or the data controller considers the request to be nonsensical;
- the data subject uses inappropriate or rude language;
- the data subject intends to use the data to file new claims against the data controller.

190. On the other hand, a request may be considered excessive, for example, if:

- a person makes a request but at the same time offers to withdraw it in exchange for some form of benefit from the data controller; or
- the request is malicious and is used to harass a controller or its employees with no other purpose than to cause disruptions, for example, based on the fact that:
 - the person has explicitly stated, in the request itself or in other communications, that they intend to cause disturbances and nothing more;
 - or the person systematically sends different requests to a controller as part of a campaign, for example, once a week, with the intention and effect of causing disruptions.

6.3.3 Consequences

191. In the case of a manifestly unfounded or excessive request for access, data controllers may, in accordance with Article 12, paragraph 5, of the GDPR, either charge a reasonable fee (taking into account the administrative costs of providing information or communication or of taking the requested

measures) or refuse to comply with the request.

192. The EDPB notes that, on the one hand, data controllers are generally not required to charge a reasonable primary fee before refusing to act on a request. On the other hand, they are not completely free to choose between the two alternatives. In fact, controllers must conduct an appropriate analysis to make a decision based on the specific circumstances of the case. While it is hardly imaginable that charging a reasonable fee would be an appropriate measure in the case of manifestly unfounded requests, it often calls for, in line with the principle of transparency, charging a fee as compensation for the administrative costs caused by repetitive requests.

193. Data controllers must be able to demonstrate the manifestly unfounded or excessive nature of a request (Article 12, paragraph 5, third sentence of the GDPR). Therefore, it is recommended to ensure adequate documentation of the underlying facts. In accordance with Article 12, paragraph 4, if the data controller refuses to respond to a request for the right of access in whole or in part, they must inform the data subject without delay and, at the latest, within one month of receiving the request of:

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- The reason for not granting the right,
- The right to file a complaint with a supervisory authority,
- The possibility of bringing a judicial appeal.

194. Before charging a reasonable fee based on Article 12, paragraph 5, of the GDPR, data controllers must provide an indication of their plan to do so to the data subjects. The latter must be enabled to decide whether to withdraw the request to avoid being charged.

195. Unjustified refusals of access requests may be considered infringements of the data rights of the subject in accordance with Articles 12 to 22 of the GDPR and, therefore, may be subject to the exercise of corrective powers by the competent supervisory authorities, including administrative fines based on Article 83 (5) b) GDPR. If data subjects believe that there has been a violation of their rights, they have the right to file a complaint based on Article 77 of the GDPR.”

(Own translation)

In light of the above, it can be concluded that to consider that the right of access has been requested repetitively, it must refer to the request for the same data that the data subject has previously requested and obtained.

However, according to the facts to which this file is limited, this is not the case, as each request to exercise the right of access refers to different data, each generated after the formulation of the previous access exercise (the claimant submits a request for access regarding personal data generated monthly, requesting different months after the month has passed and not including the request for personal data from previous months), so we could not speak of a repetition of the same request.

Now, the fact that it cannot be understood that the request of the current claimant has a repetitive nature as it does not affect the same data does not preclude the possibility that some other cause may allow it to be considered excessive, and it must, however, duly motivate the possible denial of access by expressly stating the circumstances that concur and advise this.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO GRANT the complaint filed by B.B.B. against the REGIONAL TRANSPORT CONSORTIUM and to urge the respondent party to, within one month from the notification of this resolution, send to the claimant a certification addressing the requested right or denying it with justification, indicating the reasons why the request cannot be granted, in accordance with what is established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance

with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to B.B.B. and to the REGIONAL TRANSPORT CONSORTIUM.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1037-160523

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